

9:30 AM

LINE: 2

25-CIV-07609

**ALYSON RUIZ, ON BEHALF OF HERSELF AND ALL OTHERS SIMILARLY SITUATED VS
BOARDWALK AUTO CENTER, INC., A CALIFORNIA CORPORATION**

**ALYSON RUIZ, ON BEHALF OF HERSELF AND ALL OTHERS SIMILARLY
SITUATED
BOARDWALK AUTO CENTER, INC., A CALIFORNIA CORPORATION**

**JOSHUA S FALAKASSA
MATTHEW J WAYNE**

DEFENDANT BOARDWALK AUTO CENTER, INC.'S MOTION TO COMPEL ARBITRATION

TENTATIVE RULING:

For the reasons stated below, Defendant Boardwalk Auto Center, Inc.'s ("Defendant") Motion to Compel Arbitration is **GRANTED**.

California Rules of Court, rule 3.1330 provides:

A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.

Thus, a party moving to compel arbitration may satisfy rule 3.1330 by attaching a copy of the arbitration agreement or by reciting the terms of the governing arbitration provision. (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793; *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.)

Defendant asserts that Plaintiff signed a binding arbitration agreement covering the claims asserted in this action. Defendant quotes the portion of the agreement addressing its scope, which provides that any claim, dispute, or controversy arising from Plaintiff's employment will be resolved through binding arbitration. Defendant also quotes the agreement's class and representative action waiver and the provision stating that the agreement is governed by the Federal Arbitration Act ("FAA").

In support of the motion, Defendant submits the declaration of Carol Arroyo, Defendant's Human Resources representative. Ms. Arroyo states that she is a custodian of records for Defendant's employee personnel records and files and is "readily familiar with the company's record keeping policies and procedures." (Arroyo Decl., ¶ 3.) She describes Defendant's onboarding and document-retention procedures and states that Defendant's Human Resources representatives "review each document with the employees, explain its

purpose, and answer any questions.” (Id., ¶ 4.) Ms. Arroyo further states that the arbitration agreement was among the documents presented to Plaintiff on January 8, 2025. (Id., ¶ 6.)

A party seeking to compel arbitration bears the ultimate burden of proving by a preponderance of the evidence the existence of an agreement to arbitrate. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236; *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755–756.) Once the arbitration proponent makes an adequate initial showing that an agreement exists, the opposing party bears a burden of production to present admissible evidence creating a factual dispute concerning the agreement’s existence or the authenticity of the purported signature. The ultimate burden of proof, however, remains with the party seeking arbitration. (*Iyere*, supra, 87 Cal.App.5th at pp. 755–758.)

Here, Defendant satisfied its initial burden by identifying the arbitration agreement, reciting the relevant provisions in its moving papers, and presenting Ms. Arroyo’s declaration concerning Defendant’s onboarding procedures and the presentation of the arbitration agreement to Plaintiff. Defendant has also demonstrated that Plaintiff’s claims fall within the agreement’s broad provision covering disputes arising from her employment.

Plaintiff argues that Defendant failed to meet its burden because Defendant did not attach a copy of the arbitration agreement to the moving papers. Plaintiff also states that she does not recall signing such an agreement. The omission of the agreement from the moving papers is not, by itself, dispositive because rule 3.1330 permits a moving party to state the governing arbitration provisions verbatim rather than attach the agreement. (*Sprunk*, supra, 14 Cal.App.5th at p. 793.)

Moreover, Plaintiff’s statement that she does not recall signing the agreement does not create a factual dispute as to the authenticity of her signature. Plaintiff does not affirmatively deny signing the agreement, contend that the signature is not hers, or present other evidence suggesting that the agreement or signature is inauthentic. Under *Iyere* and *Ramirez*, a lack of recollection, without more, is insufficient to create a factual dispute requiring Defendant to produce additional evidence authenticating the signature. (*Iyere*, supra, 87 Cal.App.5th at pp. 756–758; *Ramirez v. Golden Queen Mining Co., LLC* (2024) 102 Cal.App.5th 821, 835–837.)

Defendant has therefore established by a preponderance of the evidence the existence of an agreement to arbitrate and that the claims asserted in this action fall within its scope.

Defendant also demonstrated that the agreement is governed by the FAA by its express terms. (*Nixon v. AmeriHome Mortgage Company, LLC* (2021) 67 Cal.App.5th 934, 946.) Under the FAA, an agreement requiring individual rather than classwide arbitration is enforceable notwithstanding contrary state law. (*Epic Systems Corp. v. Lewis* (2018) 584 U.S. 497, 505–509; *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 352.) The agreement’s waiver of representative PAGA claims, however, does not operate to extinguish Plaintiff’s non-individual PAGA claims. Although Plaintiff may be compelled to arbitrate the individual component of her PAGA claim—that is, the claim for penalties based on Labor Code violations allegedly committed against her—Plaintiff retains statutory standing to pursue the non-individual PAGA claims on behalf of other allegedly aggrieved employees after her individual PAGA claim is compelled to arbitration. (*Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, 659–662; *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1119–1123.)

The Court further finds that Plaintiff has not established waiver. A party asserting waiver of the contractual right to arbitrate must prove by clear and convincing evidence that the party possessing the right knew of it

and intentionally relinquished or abandoned it. (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584–585.) Intentional abandonment may be shown by conduct so inconsistent with an intent to enforce the right that a reasonable factfinder could conclude the right was abandoned. (*Id.* at p. 585.) Here, the record does not establish that Defendant engaged in conduct demonstrating an intentional relinquishment or abandonment of its right to arbitrate.

Defendant attached the signed arbitration agreement to its reply, explaining that the agreement had been inadvertently omitted as an exhibit to the Arroyo Declaration. Although evidence generally should not be submitted for the first time with reply papers, a trial court has discretion to consider reply evidence that responds to issues raised in the opposition. (*Sprunk*, supra, 14 Cal.App.5th at pp. 793–794; *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537–1538.) When such evidence is considered, the opposing party should be afforded a fair opportunity to respond. (*Jay*, supra, at pp. 1537–1538.)

Here, the agreement submitted with Defendant’s reply directly responds to Plaintiff’s contention that Defendant failed to establish the existence of the agreement and to Plaintiff’s assertion that she does not recall signing it. Moreover, Defendant’s motion and the declaration of Defendant’s counsel, Matthew J. Wayne, state that Defendant previously provided Plaintiff’s counsel with Plaintiff’s personnel file at counsel’s request and that the file included the arbitration agreement. Plaintiff does not dispute that assertion in her opposition. Instead, Plaintiff contends that she will be prejudiced if the Court considers the agreement because it was not included with Defendant’s moving papers.

Plaintiff requests an opportunity to respond if the Court considers the agreement submitted with the reply. At the hearing, the Court will permit Plaintiff to address the reply evidence and to explain what additional evidence or argument, if any, she would present in a sur-reply. Plaintiff’s counsel shall also be prepared to address Defendant’s assertion that Plaintiff’s counsel received a copy of the arbitration agreement as part of Plaintiff’s personnel file several months before the motion was filed.

Any party who intends to contest the tentative ruling must email Dept. 2 Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Defendant shall prepare a written order repeating verbatim the tentative ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law. The Court alerts the parties to revised Local Rule 3.403(b)(iv) (amended effective January 1, 2024) regarding the wording of proposed orders.

9:30 AM

LINE: 3

26-UDL-00477

CLAUDIO S. NICOLOSI VS. CHRISTINA NICOLOSI, ET AL

CLAUDIO S. NICOLOSI
CHRISTINA NICOLOSI

STEVEN T. NAUMCHIK
PRO SE

DEFENDANT CHRISTINA NICOLOSI'S DEMURRER TO PLAINTIFF'S COMPLAINT – CONTINUED FROM HEARING DATE OF 7/02/2026 - (Defendant filed a Reply on Tuesday, 06/30/26 that has not yet been received in Odyssey. The Court continues Hearing on Demurrer to 08/06/26 at 2:00 p.m. so that the court can review Defendant's Reply and amend its tentative ruling, if necessary. – Please delete this message once reviewed)

TENTATIVE RULING:

Having reviewed and considered the reply brief filed on June 30, 2026 in addition to the moving papers timely filed, Defendant Christina Nicolosi's demurrer to Plaintiff Claudio S. Nicolosi's First Amended Complaint ("FAC") is **OVERRULED**. Defendant's motion to strike is **DENIED**.

BACKGROUND

This is an unlawful detainer action involving the real property located at 708 Prescott Lane, Foster City, California 94404, San Mateo County (the "subject property"). Plaintiff alleges that he owns the subject property. (FAC, ¶ II.)

Plaintiff alleges that, on September 1, 2016, he gave Defendants permission to occupy the subject property. Plaintiff further alleges that, on February 13, 2026, he served Defendants with written notice terminating their tenancy and/or permission to occupy the subject property and requiring Defendants to deliver possession on or before April 14, 2026. (FAC, ¶ V, Ex. A.) Defendants did not vacate, and this action followed.

Defendant demurs under Code of Civil Procedure section 430.10, subdivisions (e) and (f), contending the FAC does not allege facts sufficient to state an unlawful detainer claim and is uncertain. Defendant also moves to strike the FAC, contending it is a sham pleading, is improperly verified, and improperly seeks daily holdover damages. Plaintiff opposes, contending the FAC adequately pleads unlawful detainer, is not uncertain, was properly amended and verified, and sufficiently alleges fair market rental value and damages.

The Court's tentative ruling issued before the July 2, 2026 hearing overruled the demurrer and denied the motion to strike however defendant appeared at the hearing to contest the ruling and explained she had filed a reply that the Court had not seen. The Court continued this matter in order to review defendant's reply brief. The Court notes that the reply frames the service defects identified in the demurrer as part of a "bad faith" pattern by plaintiff but otherwise all material positions are restated and supplemented thus the Court's ruling has not changed. Because the Court continued the hearing date to fully review the reply brief, any prejudice caused by service errors has been ameliorated. Plaintiff's counsel is admonished to adhere to service rules.

LEGAL STANDARD

A demurrer tests the legal sufficiency of the pleading, not the truth of the pleaded facts or the plaintiff's ability to prove them. The Court considers only defects appearing on the face of the pleading or from matters that may be judicially noticed. (Code Civ. Proc., §§ 430.10, subd. (e), 430.30, 430.70.) A general demurrer admits the truth of all material factual allegations properly pleaded, but the Court does not assume the truth of contentions, deductions, or conclusions of law. (*John's Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013; *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.)

A special demurrer for uncertainty is disfavored and is strictly construed, even where a pleading is uncertain in some respects, because ambiguities can generally be clarified through discovery. A demurrer for uncertainty is properly sustained only when the pleading is so unintelligible that the responding party cannot reasonably determine what must be admitted or denied. (Code Civ. Proc., § 430.10, subd. (f); *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

An unlawful detainer complaint must be verified, set forth the facts on which the plaintiff seeks to recover, describe the premises with reasonable certainty, and state the method used to serve the notice of termination on which the complaint is based. (Code Civ. Proc., § 1166, subd. (a)(1) (3), (5).) In a residential unlawful detainer action, the plaintiff must attach the notice or notices of termination on which the complaint is based and any written lease or rental agreement, unless a statutory exception applies. (*Id.*, subd. (d)(1).)

A tenant of real property for a term less than life is guilty of unlawful detainer when the tenant continues in possession after expiration of the term for which the property is let, without the landlord's permission, after the tenancy has been terminated as required by law. (Code Civ. Proc., § 1161, subd. 1.)

On a motion to strike, the Court may strike any irrelevant, false, or improper matter inserted in a pleading, or any pleading not drawn or filed in conformity with California law, a court rule, or an order of the Court. (Code Civ. Proc., § 436, subds. (a), (b).) A motion to strike may also reach an improper demand for relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b)(3).)

DISCUSSION

The demurrer is **OVERRULED**. The FAC identifies the subject property, alleges Plaintiff's ownership and right to possession, alleges that Defendants were permitted to occupy the subject property, alleges service of a written termination notice on February 13, 2026, attaches the notice, alleges Defendants failed to deliver possession after the notice period expired, and alleges resulting damages. (FAC, ¶¶ II, V, VII-VIII, Ex. A.) Those allegations are sufficient at the pleading stage to state the basis for an unlawful detainer claim under Code of Civil Procedure sections 1161 and 1166.

Nor is the FAC fatally uncertain. Defendant argues that the FAC changed the original complaint's reference to an oral month-to-month tenancy to "permission for defendant to occupy," and that this change makes the pleading uncertain or internally inconsistent. The Court is not persuaded. At the pleading stage, the alleged permission to occupy is not so inconsistent with a tenancy, license, or other occupancy relationship terminable by notice that Defendant cannot reasonably respond. The pleading gives Defendant adequate notice of the property, the alleged basis for possession, the notice served, the alleged termination date, and the relief sought.

The Court also does not find a basis to apply the sham pleading doctrine. The sham pleading doctrine permits a court to disregard allegations in an amended pleading that are inconsistent with prior allegations when the amendment appears designed to avoid defects in the prior pleading and no satisfactory explanation is given. The doctrine is not applied mechanically and is not intended to prevent a party from correcting ambiguous or erroneous allegations. (*Hendy v. Losse* (1991) 54 Cal.3d 723, 742-743; *Dones v. Life Insurance Company of North America* (2020) 55 Cal.App.5th 665, 688.) Here, the change from “oral agreement” or “month-to-month tenancy” to “permission to occupy” does not create an irreconcilable factual contradiction on the face of the FAC. Nor does it show, on the face of the pleadings, that no unlawful detainer claim can be stated truthfully. Defendant may challenge the factual and legal effect of Plaintiff’s alleged occupancy arrangement at the appropriate later stage, but the alleged wording change does not support sustaining the demurrer or striking the FAC.

Defendant also challenges the notice attached to the FAC, arguing it is facially void or internally inconsistent because it references Civil Code section 827, rent-limit and just-cause exemptions, and a just-cause ground for termination. The Court does not decide on demurrer whether Plaintiff ultimately can prove compliance with all statutory notice, just-cause, exemption, or withdrawal-from-market requirements. The issue at this stage is whether the FAC and attached notice are so defective on their face that the claim cannot proceed. They are not. The notice identifies the property, the occupants, the termination date, and the stated basis for termination, and the FAC alleges service and continued possession after expiration of the notice period. Those allegations are sufficient to withstand demurrer.

Defendant’s verification argument also does not defeat the FAC at this stage. Code of Civil Procedure section 1166, subdivision (a)(1), requires an unlawful detainer complaint to be verified. Code of Civil Procedure section 446 permits attorney verification when the party is absent from the county where the attorney has his or her office, when the party is otherwise unable to verify, or when the facts are within the attorney’s knowledge. The FAC contains an attorney verification. Defendant’s argument that Plaintiff personally signed a different Judicial Council form on the same day raises a factual issue that does not establish, on the face of the FAC, that the verification is invalid or that the pleading should be stricken.

The motion to strike the daily rental damages allegation is denied. Plaintiff alleges a daily fair market rental value of \$183.33. (FAC, ¶ VIII.) In an unlawful detainer action, the plaintiff may seek damages for the reasonable rental value of the premises during the period of unlawful detention. (See Code Civ. Proc., § 1174, subd. (b); *Superior Motels, Inc. v. Rinn Motor Hotels, Inc.* (1987) 195 Cal.App.3d 1032, 1068.) Defendant’s disagreement with the alleged daily value does not make the allegation irrelevant, false, or improper on the face of the pleading. The amount and evidentiary support for any reasonable rental value are issues for proof, not grounds to strike the damages allegation at the pleading stage.

Accordingly, Defendant Christina Nicolosi’s demurrer to the FAC is **OVERRULED** and Defendant’s motion to strike is **DENIED**.

Defendant shall file and serve an answer to the FAC within five calendar days after service of notice of entry of the order, unless the Court orders otherwise. (Cal. Rules of Court, rule 3.1320(g).)

Any party who intends to contest the tentative ruling must email Dept. 2 Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Plaintiff shall prepare a written order repeating verbatim the tentative ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law. The Court alerts the parties to revised Local Rule 3.403(b)(iv) (amended effective January 1, 2024) regarding the wording of proposed orders.

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TENTATIVE RULING:

The Court's tentative ruling on Defendant's Demurrer incorporates the Court's ruling on Defendant's Motion to Strike.

Posted: 3:00 P.M.

